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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **DIANA CANDELARIA, in her individual capacity, and STEVE GORDON, Director of the California DMV, in his official capacity,** Defendants.	Case No. 2:26-cv-00983-DC-CSK **OBJECTIONS TO MAGISTRATE JUDGE'S FINDINGS AND RECOMMENDATIONS** (ECF No. 6) 28 U.S.C. § 636(b)(1) Local Rule 304

INTRODUCTION

Plaintiff Brendan Ngehsi Newanforbi, proceeding pro se, timely files these Objections to Magistrate Judge Chi Soo Kim's Findings and Recommendations (ECF No. 6, filed June 15, 2026), pursuant to 28 U.S.C. section 636(b)(1) and Local Rule 304. The Magistrate Judge recommends denying Plaintiff's in forma pauperis application, dismissing the First Amended Complaint without leave to amend, and closing the case.

De novo review of the Findings and Recommendations is required as to each objection. 28 U.S.C. section 636(b)(1)(C); *United States v. Reyna-Tapia,* 328 F.3d 1114, 1121 (9th Cir. 2003)

(en banc). As set forth below, the Findings and Recommendations contain three categories of fundamental error that, if adopted, would deny Plaintiff his day in court on substantial constitutional claims for which three California appellate courts provide substantial support on the same due process theory: **(1)** the Findings and Recommendations misapplied the section 1915(e) screening standard by weighing evidence and resolving fact-sensitive immunity and standing questions against the pleader; **(2)** the Findings and Recommendations applied out-of-circuit authority to bypass the Ninth Circuit's required functional analysis of quasi-judicial immunity; and **(3)** the Findings and Recommendations denied leave to amend without identifying any deficiency that could not be cured by additional factual allegations drawn from the hearing transcript, the dashcam audio, and the agency record.

These Objections are organized to give the District Judge multiple independent paths to decline adoption. Even if the Court is unpersuaded on any single merits theory, the First Amended Complaint at minimum states a non-frivolous, amendable claim and cannot be dismissed at the section 1915 screening stage.

STANDARD OF REVIEW AT THE SECTION 1915(e) SCREENING STAGE

Before turning to the specific objections, Plaintiff respectfully reminds the Court of the procedural posture that governs every issue below. At the section 1915(e) screening stage, the court must (1) accept all well-pleaded factual allegations as true, (2) construe the pleadings of a pro se litigant liberally, and (3) deny dismissal without leave to amend only when futility is clear on the face of the complaint. *Hebbe v. Pliler,* 627 F.3d 338, 342 (9th Cir. 2010) (pro se pleadings construed liberally); *Lopez v. Smith,* 203 F.3d 1122, 1130 (9th Cir. 2000) (en banc) (leave to amend mandatory absent clear futility); *Neitzke v. Williams,* 490 U.S. 319, 325 (1989) (frivolousness standard is narrow).

The Findings and Recommendations did not apply these standards. The Findings and

Recommendations weighed conflicting factual inferences from the dashcam evidence, resolved a fact-sensitive functional-immunity inquiry against Plaintiff, treated the SR-22 punitive-encumbrance allegation as equivalent to ordinary insurance, and denied leave to amend without identifying which specific facts could not possibly be added. Each of those moves is foreclosed by the screening standard.

A short organizing principle runs through these Objections. **At minimum, the First Amended Complaint is not frivolous** because the Findings and Recommendations themselves acknowledged Plaintiff's financial eligibility and dismissed only on a facial-merit theory built on out-of-circuit immunity authority and a contested functional-immunity question. F&R at 2. **At minimum, leave to amend is mandatory** because the Findings and Recommendations faulted the First Amended Complaint for lacking certain factual specifics while denying Plaintiff any opportunity to supply additional facts available from the hearing transcript, the dashcam audio, and the agency record. **At minimum, dismissal should be without a prejudice finding** on federal plausibility issues that turn on a fuller record, especially where the Findings and Recommendations rely on out-of-circuit authority for immunity and treat fact-intensive dual-role analysis as resolvable against Plaintiff at screening.

OBJECTION I

The Magistrate Judge Erred in Applying Blanket Quasi-Judicial Absolute Immunity to Defendant Candelaria (Count I)

A. The Findings and Recommendations Failed to Conduct the Required Functional Analysis. The Supreme Court has held that the applicability of absolute immunity to non-judicial officers turns on a functional analysis of the nature of the acts performed, not on the title of the officer. *Butz v. Economou*, 438 U.S. 478, 512 (1978); *Forrester v. White*, 484 U.S. 219, 227-30 (1988). The Ninth Circuit applies this functional test by examining whether the official (1)

performed an adjudicative function, (2) with adequate procedural safeguards, and (3) whether there were sufficient checks on the official's authority. *Cleavinger v. Saxner,* 474 U.S. 193, 202 (1985). Officials performing functions traditionally associated with advocates are not entitled to absolute immunity. *Swift v. California,* 384 F.3d 1184, 1191-92 (9th Cir. 2004).

The Findings and Recommendations applied blanket quasi-judicial immunity to Defendant Candelaria based solely on her title as a 'Driver Safety Hearing Officer' and the general nature of her duties, without conducting the required functional analysis. F&R at 5-7. The Findings and Recommendations cite *Burrell v. Jackson,* 2003 WL 23545858 (E.D. Va. 2003), and *Baker v. Bzydra,* 2019 WL 6619348 (D. Conn. 2019), both out-of-circuit decisions that do not apply the Ninth Circuit's functional test. Neither case addresses the specific structural deficiency at issue here: the merger of prosecutorial and adjudicative functions within the same hearing officer. The First Amended Complaint plausibly alleges that Defendant Candelaria performed functions traditionally associated with advocates, including evidence gathering, ratification of officer testimony, and dismissal of agency-issued exculpatory documentation. Whether those functions are advocate functions or adjudicative functions is a fact-sensitive inquiry that cannot be resolved against the pleader at section 1915 screening.

B. Three California Appellate Decisions Provide Substantial Support for Plaintiff's Due Process Theory and Foreclose Treating It as Frivolous. The Findings and Recommendations acknowledged Plaintiff's citations to *California DUI Lawyers Ass'n v. Department of Motor Vehicles,* 77 Cal. App. 5th 517 (2022); *Knudsen v. Department of Motor Vehicles,* 101 Cal. App. 5th 186 (2024); and *Clarke v. Gordon,* 104 Cal. App. 5th 1267 (2024), but dismissed them by stating that dual-role analysis requires a 'case-by-case determination.' F&R at 9. This reasoning is internally inconsistent with the screening standard. The question at the pleading stage is not whether the dual-role violation is conclusively proven, but whether the allegations state a plausible claim. *Ashcroft v. Iqbal,* 556 U.S. 662, 678 (2009). Three appellate courts examining the identical type of APS hearing concluded that the hearing officer performed

a dual role. The First Amended Complaint plausibly alleges specific, parallel conduct by Defendant Candelaria. That is textbook plausibility under *Iqbal*.

Moreover, the 'case-by-case' language in *Knudsen* cuts decisively against treating Plaintiff's claim as frivolous: a doctrine that requires a case-by-case factual inquiry cannot be resolved against the pleader on a section 1915 screening order without the case-by-case factual inquiry actually being performed. The First Amended Complaint's specific allegations, including the ignored CHP Detention Certificate, the dashcam evidence contradicting the sworn DS 367 statement, and the conclusory written decision, are precisely the kind of facts that a reasonable judge could find establish a dual-role due process violation.

C. The First Amended Complaint Alleged Non-Conclusory Facts of Prosecutorial Conduct. The Findings and Recommendations stated that Plaintiff 'has not alleged non-conclusory facts creating a reasonable inference that Defendant Candelaria acted in a dual role.' F&R at 9. This characterization disregards the First Amended Complaint's specific factual allegations, including: **(1)** Defendant Candelaria dismissed the CHP Detention Certificate -- a formal statutory document issued by the arresting agency itself, certifying that the arrest lacked evidentiary basis -- without any reasoned analysis (FAC paragraphs 28-29, 44(c)); **(2)** Defendant Candelaria sustained a suspension based on an officer's sworn statement of 'odor of alcoholic beverage' when the dashcam audio records the same officers contemporaneously identifying the only liquid they found as urine (FAC paragraphs 18-19, 44(a)); and **(3)** Defendant Candelaria applied the dual-role APS framework that had been condemned in three appellate decisions, all issued before the January 24, 2025 hearing (FAC paragraphs 37, 44(a)-(f)). Those allegations are not conclusory; they identify specific documentary records, specific audio recordings, and specific dates.

D. Footnote 2 Reflects a Prohibited Factual Finding at the Screening Stage. The Findings and Recommendations stated in footnote 2 that 'it is unclear how' the urine cup 'would

directly contradict the officers' sworn testimony that they smelled the odor of an alcoholic beverage.' F&R at 9 n.2. This is itself a factual finding that the Findings and Recommendations was not permitted to make at the section 1915 screening stage. The First Amended Complaint does not merely allege a 'cup containing urine.' The First Amended Complaint alleges -- based on dashcam audio recordings -- that Officer Melano seized a cup from the vehicle, stated 'this is piss,' and that this was the only liquid the officers discovered in the vehicle (FAC paragraphs 18-19). The officers' subsequent sworn DS 367 statement attributed an odor of alcohol to that same vehicle interior. By concluding that the audio-recorded contemporaneous identification of urine is not in tension with the later sworn report of alcohol odor, the Findings and Recommendations weighed competing inferences against Plaintiff. That move is foreclosed at screening. *Hebbe,* 627 F.3d at 342.

E. The Conflicting Record Inferences Cannot Be Resolved at Screening. The contemporaneous audio identification of the only seized liquid as urine, juxtaposed with the later sworn officer statement of alcohol odor under penalty of perjury, raises a triable question of testimonial reliability for further development on a fuller record. At minimum, this is the kind of credibility inference that must be resolved in Plaintiff's favor at the pleading stage and that cannot support a finding that the First Amended Complaint is 'frivolous.'

F. Even if Quasi-Judicial Immunity Could Be Reached at Screening, It Would Not Insulate a Hearing Officer Acting Outside Statutory Authority. The First Amended Complaint plausibly alleges the absence of the statutory 'lawfully arrested' predicate required by California Vehicle Code section 13353(a)(1). At minimum, that allegation makes dismissal on immunity grounds premature: where the statutory predicate that confers adjudicative authority is itself contested, the functional-immunity question cannot be resolved against the pleader on the face of the complaint. *Mireles v. Waco,* 502 U.S. 9, 11-12 (1991) (immunity does not extend to actions taken in the complete absence of jurisdiction); *Stump v. Sparkman,* 435 U.S. 349, 356-57 (1978) (same).

G. The Practical Stakes Underscore Why a Functional Analysis Is Required. If blanket quasi-judicial immunity attached to every California APS hearing officer based on title alone, the entire dual-role framework that three California appellate courts have repeatedly condemned would be effectively insulated from federal section 1983 review. The Ninth Circuit's functional test exists to prevent precisely that result. *Cleavinger,* 474 U.S. at 202.

OBJECTION II

The Magistrate Judge Erred in Treating Plaintiff's Mercer / CVC Section 13353(a)(1) 'Lawful Arrest' Theory as Frivolous

A. The Mercer Question Is at Minimum a Substantial Legal Dispute. California Vehicle Code section 13353(a)(1) makes the lawfulness of the arrest a statutory predicate to any refusal suspension. *Music v. Department of Motor Vehicles,* 221 Cal. App. 3d 841, 851 (1990). *Mercer v. Department of Motor Vehicles,* 53 Cal. 3d 753, 768-69 (1991), requires observed volitional movement of the vehicle to support a warrantless DUI arrest in the absence of a qualifying statutory exception. The First Amended Complaint plausibly alleges that the vehicle was stationary, the engine was off, and Plaintiff was asleep on a dirt shoulder when the CHP officers made contact, and that no qualifying exception applied (FAC paragraphs 15-20). That presents, at a minimum, a substantial legal dispute that is not properly resolved against Plaintiff at the section 1915 screening stage.

B. The Findings and Recommendations Misapplied California Vehicle Code Section 40300.5. The Findings and Recommendations cited California Vehicle Code section 40300.5 to bypass the *Mercer* observed-volitional-movement requirement. F&R at 6 & n.1. But section 40300.5 applies only when specified statutory prerequisites are present, including a traffic accident, observed impaired driving conduct, or a determination that the person was driving while

impaired and would not be apprehended absent immediate arrest. The First Amended Complaint plausibly alleges that none of those prerequisites was present (FAC paragraphs 15-20). The Findings and Recommendations cited the statute but did not apply its text to the alleged facts, and in any event could not resolve that factual question against Plaintiff on screening.

C. The Section 849(b)(1) Detention Certificate Is Documentary, Not a Collateral Attack on the Underlying Suspension. The Findings and Recommendations treated Plaintiff's reference to the CHP-issued Detention Certificate under California Penal Code section 849(b)(1) as an impermissible collateral challenge to the suspension. F&R at 6-7. That misreads Plaintiff's argument. Plaintiff does not argue that the Detention Certificate, standing alone, voids the refusal suspension under Penal Code section 849(b). Plaintiff argues that the 'lawfully arrested' predicate required by California Vehicle Code section 13353(a)(1) was never satisfied in the first instance, because the arrest was unlawful under *Mercer* from its inception, and the Detention Certificate confirms that the arresting agency itself concluded there were 'insufficient grounds for making a criminal complaint.' FAC paragraphs 24-27. *Music,* 221 Cal. App. 3d at 850-51, directly supports this distinction: the statutory predicate of a lawful arrest is jurisdictional, and a hearing officer who proceeds without it acts outside the scope of her adjudicative authority.

D. The Jurisdictional Argument Bears Directly on Immunity. If the 'lawfully arrested' predicate was absent, then the First Amended Complaint plausibly alleges that Defendant Candelaria acted 'in the complete absence of all jurisdiction' -- one of the two recognized exceptions to judicial immunity. *Mireles,* 502 U.S. at 11-12; *Stump,* 435 U.S. at 356-57. The Findings and Recommendations did not address this immunity exception.

E. Even If the District Judge Disagrees on the Merits, the Mercer / Section 13353(a)(1) Theory Is Not Frivolous. A legal theory rooted in published California Supreme Court authority (*Mercer*) and published California Court of Appeal authority (*Music*) cannot be 'frivolous' within the meaning of section 1915(e). *Neitzke,* 490 U.S. at 325. Whether or not the

District Judge ultimately agrees with Plaintiff's reading of those authorities, the legal theory has 'an arguable basis in law.'

OBJECTION III

The Magistrate Judge Erred in Finding No Standing for Prospective Relief Under Ex Parte Young (Counts II and III)

A. The First Amended Complaint Alleges Continuing, Present Adverse Effects. The Findings and Recommendations concluded that Plaintiff's alleged harms 'do not establish continuing, present adverse effects requiring prospective injunctive relief.' F&R at 8. This conclusion rests on a misreading of the First Amended Complaint. Plaintiff alleged the following ongoing injuries: **(1)** destruction of his career as a professional Class A CDL truck driver, with continuing inability to obtain comparable employment (FAC paragraphs 14, 35-36); **(2)** a three-year SR-22 financial-responsibility filing requirement under California Vehicle Code section 16430 that extends through approximately February 2028 (FAC paragraph 32(f)); **(3)** the APS suspension record and its continuing collateral consequences on Plaintiff's commercial driving record (FAC paragraph 32(b)-(e)); **(4)** the reissue conditions tied to the suspension; and **(5)** the ongoing professional stigma in the trucking industry attaching to a DUI-related CDL suspension (FAC paragraphs 14, 35-36). Each is a continuing, present adverse effect that a forward-looking injunction directed at Defendant Gordon in his official capacity could redress.

B. The SR-22 Requirement Is a Punitive, High-Risk Encumbrance, Not Ordinary Insurance. The Findings and Recommendations appear to treat the SR-22 financial-responsibility requirement as equivalent to ordinary auto insurance required by California Vehicle Code section 16020(a). F&R at 8. That conflation is incorrect. An SR-22 certificate filed pursuant to California Vehicle Code section 16430 is a high-risk filing imposed only as a consequence of specified administrative actions, including the APS suspension challenged here. It triggers substantially

higher insurance premiums than ordinary coverage, requires the insurer to notify the DMV of any lapse, and exposes the licensee to additional administrative penalties for any non-renewal. The SR-22 burden is therefore a continuing, present adverse effect directly traceable to the unconstitutional hearing and redressable by the prospective relief sought. *Villa v. Maricopa County*, 865 F.3d 1224, 1229 (9th Cir. 2017) (collateral consequences may constitute continuing adverse effects supporting prospective relief).

C. The CDL Suspension Carries a Distinct Liberty-Interest Component. The First Amended Complaint plausibly alleges that the refusal-related suspension of Plaintiff's Class A CDL -- with doubles, triples, and tank vehicle endorsements -- carries collateral consequences on his commercial driving record that impair his ability to pursue his lawful occupation. As set forth in the concurrently filed Supplemental Declaration (paragraphs 15-17), the suspension triggers federal reporting obligations that CDL employers routinely query before hiring or assigning safety-sensitive duties. Those continuing employability consequences are a plausible present adverse effect that prospective relief can redress.

D. Ex Parte Young Does Not Require a Likelihood of Future Violations. Plaintiff is not seeking to enjoin a hypothetical future APS hearing. Plaintiff is seeking to remedy an ongoing violation of federal law manifested in the continuing collateral consequences of the January 24, 2025 hearing -- the suspension record, the SR-22 mandate, the reissue conditions, and the resulting impairment of Plaintiff's CDL livelihood. *Ex parte Young,* 209 U.S. 123 (1908), requires only an ongoing violation of federal law, not a forecast of future violations. *Verizon Md., Inc. v. Public Serv. Comm'n,* 535 U.S. 635, 645 (2002).

E. Even if the District Judge Disagrees on Standing, the Standing Allegations Are Curable Through Amendment. The Findings and Recommendations identify general categories of ongoing harm and conclude they are insufficient, but do not identify a specific factual gap that could not possibly be cured. To the extent the Court concludes additional specificity is required,

Plaintiff can supplement the standing allegations with concrete monetary figures on the SR-22 premium differential, employment-related communications confirming the CDL stigma's economic effect, and additional detail on the reissue and CDLIS reporting obligations. Dismissal without leave to amend cannot stand on a standing theory where the only identified gap is one of specificity.

OBJECTION IV

The Magistrate Judge Erred in Denying the IFP Application Based on a Frivolousness Finding

The Findings and Recommendations acknowledged that 'Plaintiff has made the required financial showing under 28 U.S.C. section 1915(a).' F&R at 2. The IFP denial was based entirely on the conclusion that the action is 'facially frivolous or without merit.' Id. Because that frivolousness determination rests on the legal errors identified in Objections I through III, the IFP denial must likewise be reversed.

A claim is legally frivolous only when it 'lacks an arguable basis either in law or in fact.' *Neitzke v. Williams*, 490 U.S. 319, 325 (1989). A section 1983 action predicated on a due process theory that three California appellate courts have independently validated -- *California DUI Lawyers Ass'n*, *Knudsen*, and *Clarke* -- has, by definition, an arguable basis in law. The Ninth Circuit has cautioned that the frivolousness standard 'is intended to address only the most extreme cases.' *Franklin v. Murphy*, 745 F.2d 1221, 1228 (9th Cir. 1984). This case, involving detailed factual allegations, dashcam audio evidence, statutory analysis grounded in the California Vehicle Code and Penal Code, and binding appellate authority, is not among them.

Even if the District Judge ultimately concludes that the First Amended Complaint requires further factual development, that uncertainty itself defeats a frivolousness finding under *Neitzke*

and supports leave to amend rather than dismissal.

OBJECTION V

The Magistrate Judge Erred in Denying Leave to Amend

A. Pro Se Plaintiffs Are Entitled to Leave to Amend with Guidance. The Ninth Circuit has 'long required that a district court must grant leave to amend even if no request to amend the pleading was made, unless it determines that the pleading could not possibly be cured by the allegation of other facts.' *Lopez v. Smith*, 203 F.3d 1122, 1130 (9th Cir. 2000) (en banc). Upon dismissal, 'the court must tell a pro se plaintiff of a pleading's deficiencies and provide an opportunity to cure such defects.' *Garity v. APWU Nat'l Lab. Org.*, 828 F.3d 848, 854 (9th Cir. 2016). The Findings and Recommendations provided no guidance on what additional facts, if any, could cure the identified deficiencies.

B. The Findings and Recommendations Are Internally Inconsistent on Leave to Amend. The Findings and Recommendations cite the duty to allow amendment unless futility is clear, yet simultaneously fault the First Amended Complaint for lacking factual specificity while denying Plaintiff any opportunity to supply more. That is the precise sequence *Lopez* forecloses. If the Findings and Recommendations identify specific factual gaps, the remedy under Ninth Circuit law is leave to amend with guidance, not dismissal.

C. The Cross-Reference to an Unrelated Case Was Improper and Compounded the Error. The Findings and Recommendations cited *Newanforbi v. California*, 2026 WL 1067541 (E.D. Cal. Apr. 20, 2026), an entirely separate action, as part of its rationale for denying leave to amend. F&R at 9-10. That cross-reference was procedurally and substantively unsound for four independent reasons.

First, the defendants are different. *Newanforbi v. California* (Case No. 2:25-cv-01460-DC-CSK) was brought against the State of California, the California Highway Patrol as an entity, Officer Santiago Meza-Gonzalez (#023295), and Officer Melano (#023054). The instant action is brought against Diana Candelaria, a DMV Driver Safety Hearing Officer, in her individual capacity, and Steve Gordon, Director of the California DMV, in his official capacity. No defendant in *Newanforbi v. California* appears in this action, and no defendant in this action appears in *Newanforbi v. California*.

Second, the causes of action are different. *Newanforbi v. California* pleaded three counts: (i) Fourth Amendment unlawful search and seizure, (ii) Fourteenth Amendment due process based on the conduct of the arrest, and (iii) Monell municipal liability for CHP customs, policies, or practices. The instant action pleads a fundamentally distinct theory: a 42 U.S.C. section 1983 due process challenge to the structural merger of prosecutorial and adjudicative functions within a single DMV hearing officer, with prospective relief under *Ex parte Young* against the DMV Director. The two pleadings do not share a single overlapping cause of action.

Third, the factual predicates are different. *Newanforbi v. California* turns on the conduct of CHP officers during the roadside encounter, search, arrest, and post-arrest custody on November 1, 2024. The instant action turns on the conduct of a DMV hearing officer during the January 24, 2025 administrative per se hearing and the February 11, 2025 written decision sustaining the refusal suspension. The First Amended Complaint here does not challenge officer conduct at the roadside; it challenges the constitutional architecture of the DMV adjudication that followed.

Fourth, the legal theories are different. *Newanforbi v. California* rests on Fourth Amendment seizure doctrine and Monell municipal-liability doctrine applied to CHP. The instant action rests on the procedural due process doctrine articulated in *California DUI Lawyers Ass'n, Knudsen*, and *Clarke v. Gordon* -- the three California appellate decisions condemning the

DMV's dual-role hearing-officer framework -- and on the deliberate indifference theory against Defendant Gordon arising from those three pre-hearing condemnations.

Because the two actions share neither defendants, claims, factual predicates, nor legal theories, the cross-reference cannot rationally support an inference that Plaintiff has a pattern of inadequate pleading. Each case must be evaluated on its own merits. *Taylor v. Sturgell*, 553 U.S. 880, 893 (2008). To the extent the cross-reference influenced the futility analysis, that influence was procedurally improper and prejudicial, and the futility conclusion that rests on it cannot stand.

D. Amendment Could Cure Any Identified Deficiencies. If the Court finds that the dual-role allegations require greater factual specificity, Plaintiff can supplement them with additional details from the hearing transcript, the audio recording of the hearing, the dashcam recording (already partially quoted in the FAC), and the agency's own Form DS 2304 hearing-officer instructions. If the Court finds that the standing allegations for *Ex parte Young* relief require greater specificity, Plaintiff can add further factual detail regarding the ongoing SR-22 requirement (including premium differentials), the CDL suspension's continuing career consequences, the CDLIS reporting effects, and the collateral effects on Plaintiff's commercial driving record. Dismissal without leave to amend is appropriate only when amendment would be futile, and futility must be clear. *Lathus v. City of Huntington Beach*, 56 F.4th 1238, 1243 (9th Cir. 2023). Plaintiff respectfully states that if the Court identifies any deficiency in the First Amended Complaint, Plaintiff requests leave to amend and is prepared to file a Second Amended Complaint that addresses the identified gaps.

OBJECTION VI

The Magistrate Judge Erred in Characterizing the First Amended Complaint as a 'Pretext' for State Court Review

The Findings and Recommendations concluded that the First Amended Complaint 'appears to be a pretext for this Court to review actions which should be reviewed in an appropriate state court,' citing *Burrell,* 2003 WL 23545858, at *3. F&R at 10. This conclusion is unsupported by any applicable abstention or jurisdictional doctrine and rests on a misunderstanding of the relief Plaintiff seeks.

A. Section 1983 Provides an Independent Federal Cause of Action. 42 U.S.C. section 1983 creates a federal cause of action for the deprivation of constitutional rights under color of state law. Federal courts have original jurisdiction over such claims. 28 U.S.C. section 1331. The availability of state remedies does not defeat federal jurisdiction. *Monroe v. Pape,* 365 U.S. 167, 183 (1961); *Patsy v. Board of Regents,* 457 U.S. 496, 516 (1982) (exhaustion of state remedies not required under section 1983). A plaintiff may choose to pursue constitutional claims in federal court rather than through state administrative channels, and that choice does not render the federal action a 'pretext.'

B. The First Amended Complaint Challenges Structural Constitutional Defects, Not Merely the Hearing Outcome. The First Amended Complaint does not merely seek to relitigate the DMV's factual findings. It challenges the structural merger of prosecutorial and adjudicative functions -- a systemic constitutional deficiency for which Plaintiff seeks relief broader than ordinary administrative review of one hearing outcome. A mandamus action under California Code of Civil Procedure section 1094.5 reviews whether the agency's findings are supported by the weight of the evidence; it does not restructure the hearing process itself or address the constitutional architecture of the dual-role framework. The declaratory and injunctive relief sought in Counts II and III -- including structural reform of that framework -- goes beyond what mandamus review provides, which is precisely what section 1983 is designed for.

C. Neither Rooker-Feldman Nor Younger Abstention Applies. The Findings and

Recommendations did not formally invoke either *Rooker-Feldman* or *Younger* abstention, but the 'pretext' characterization implies both. *Rooker-Feldman* does not apply because a DMV administrative hearing is not a 'state court judgment.' *Exxon Mobil Corp. v. Saudi Basic Indus. Corp.*, 544 U.S. 280, 284 (2005); *Kougasian v. TMSL, Inc.*, 359 F.3d 1136, 1139 (9th Cir. 2004) (doctrine limited to cases brought by state-court losers complaining of injuries caused by state-court judgments). *Younger* does not apply because there is no pending state judicial proceeding. The APS hearing concluded on January 24, 2025, and the suspension was imposed on February 11, 2025. There is nothing to abstain in favor of.

D. The 'Pretext' Finding Is Unsupported and Unnecessary. Because no formal abstention or jurisdictional doctrine supports the 'pretext' characterization, that finding cannot independently support dismissal.

CONCLUSION AND REQUESTED RELIEF

For the foregoing reasons, Plaintiff respectfully requests that the District Judge enter relief in the following descending order of preference:

1. **Primary relief:** Decline to adopt the Magistrate Judge's Findings and Recommendations; grant Plaintiff's application to proceed in forma pauperis; and allow this action to proceed on the First Amended Complaint.

2. **Alternative relief (first):** Decline to deny the in forma pauperis application on a frivolousness theory and permit service at minimum on the official-capacity prospective-relief claims against Defendant Gordon under Counts II and III.

3. **Alternative relief (second):** Grant in forma pauperis status and remand to the Magistrate Judge for further screening under the proper Rule 12-style standard, with

instructions to accept the well-pleaded allegations as true and refrain from resolving fact-sensitive functional-immunity and standing questions at screening.

4. **Alternative relief (third):** Grant Plaintiff leave to amend, with specific guidance identifying any additional facts the Court deems necessary as to (a) the dual-role allegations, (b) the standing allegations for prospective relief, and (c) the requested equitable relief; Plaintiff is prepared to file a Second Amended Complaint promptly upon the Court's order.

Plaintiff respectfully submits that, on any of these four paths, the appropriate result is to decline adoption of the Findings and Recommendations as currently written. Even where the Court is not persuaded on the ultimate viability of one or more claims, the proper disposition is not denial of IFP as frivolous and dismissal without leave to amend -- those are the two most consequential rulings in the Findings and Recommendations, and neither is supported by the record or the applicable legal standard.

Dated: June 18, 2026

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BRENDAN NGEHSI NEWANFORBI

Plaintiff, Pro Se